

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabelle James	Team: Squad #09	CCRB Case #: 201702584	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/07/2017 4:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/7/2018	Precinct: 113		
Date/Time CV Reported Tue, 04/04/2017 2:48 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 04/04/2017 2:48 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Murphy	19464	955241	113 PCT
2. POM Eric Jordan	09041	941973	113 PCT
3. POM Brian Nelson	15828	957895	113 PCT
4. POM Joshua Malone	21180	958864	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Murphy	Abuse: Inside of § 87(2)(b) in Queens, Police Officer Michael Murphy threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Eric Jordan	Abuse: Inside of § 87(2)(b) in Queens, Police Officer Eric Jordan threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Joshua Malone	Abuse: On the corner of § 87(2)(b) in Queens, Police Officer Joshua Malone stopped § 87(2)(b)	C . Exonerated
D . POM Brian Nelson	Abuse: On the corner of § 87(2)(b) in Queens, Police Officer Brian Nelson stopped § 87(2)(b)	D . Exonerated
E . POM Brian Nelson	Abuse: On the corner of § 87(2)(b) in Queens, Police Officer Brian Nelson frisked § 87(2)(b)	E . Unsubstantiated
F . POM Brian Nelson	Abuse: On the corner of § 87(2)(b) in Queens, Police Officer Brian Nelson searched § 87(2)(b)	F . Unsubstantiated
G . POM Brian Nelson	Abuse: On the corner of § 87(2)(b) in Queens, Police Officer Brian Nelson searched § 87(2)(b)	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On April 4, 2017, § 87(2)(b) filed this complaint with the CCRB as a walk-in complainant.

On March 7, 2017, § 87(2)(b) was at New York City Housing Court fighting her eviction from her apartment, located at § 87(2)(b) in Queens, when she received a call from her sister, § 87(2)(b) telling her that the New York City Marshalls were at § 87(2)(b) and § 87(2)(b) apartment evicting them. § 87(2)(b) returned home immediately and, on her way home, called 311 to report what she believed was an illegal eviction from her apartment. § 87(2)(b) was transferred to 911 and told the dispatcher that she was being illegally evicted.

At approximately 4:00 p.m., two officers, identified as Police Officer Michael Murphy and Police Officer Eric Jordan of the 113th Precinct, responded to § 87(2)(b)'s building and spoke to her in the entrance area. § 87(2)(b) explained to the officers that her landlord had changed her locks and that she needed to get inside to retrieve her belongings. While § 87(2)(b) was speaking to the officers, her upstairs neighbor left his apartment and told the officers that § 87(2)(b) had been evicted by the Marshalls earlier that day. The officers then told § 87(2)(b) that if she had been evicted, she had to leave the premises because it was considered trespassing. The officers told § 87(2)(b) "Don't illegally enter or break down the door of your apartment or you'll go to jail." (**Allegation A** and **Allegation B**). The officers left then left § 87(2)(b) inside the building to respond to another job.

Approximately 45 minutes later, § 87(2)(b)'s landlord called the police alleging that he saw § 87(2)(b) attempt to break into her apartment by kicking her apartment door. He also believed she was armed with a firearm. PO Murphy and PO Jordan responded to § 87(2)(b)'s building a second time and spoke to § 87(2)(b)'s landlord. While speaking to § 87(2)(b)'s landlord, two officers, identified as Police Officer Joshua Malone and Police Officer Brian Nelson of the 113th Precinct, put over the radio that they had stopped § 87(2)(b) who matched the description provided by § 87(2)(b)'s landlord in his 911 call, on the corner of § 87(2)(b) (**Allegation C** and **Allegation D**). PO Nelson allegedly patted down § 87(2)(b) and searched her pockets, and then allegedly searched the tote bag § 87(2)(b) was carrying (**Allegation E**, **Allegation F**, and **Allegation G**). PO Murphy and PO Jordan arrived at the scene and PO Murphy ultimately summonsed § 87(2)(b) for § 87(2)(b).

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was ineligible for mediation due to the fact that § 87(2)(b) plans to file a law suit in regards to this incident.
- On May 8, 2017, a Freedom of Information Law request was made of the New York City Comptroller's Office for any Notice of Claim filed in regard to this incident (**Board Review 1**). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has four prior CCRB complaints (**Board Review 3**). § 87(2)(b)
- PO Murphy has been a member of the NYPD for three years and has no prior CCRB allegations pleaded against him.
- PO Jordan has been a member of the NYPD for ten years and has two CCRB allegations pleaded against him involving one case, 201504129. § 87(2)(g)
- PO Malone has been a member of the NYPD for one year and has no CCRB allegations pleaded against him.
- PO Nelson has been a member of the NYPD for two years and has one prior CCRB allegation pleaded against him involving one case, 201600847. PO Nelson is currently involved in an open CCRB case, 201701883, in which two allegations have been pleaded against him; Force – Vehicle and Force – Physical Force. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g)
- § 87(2)(b) alleged that she was stopped by multiple white male officers and a black male officer. PO Malone testified that he and PO Nelson made the decision to stop § 87(2)(b) together. Although PO Nelson did not recall interacting with § 87(2)(b) on March 7, 2017, PO Malone testified that PO Nelson, who he was assigned to work with on the day of the incident, also stopped § 87(2)(b) § 87(2)(g)
- § 87(2)(b) described the officer who allegedly frisked and searched her jacket pockets as being a white male. She could not describe him further. PO Murphy, PO Jordan, Sgt. Liff, and PO Nelson are all white males and none of them acknowledged frisking or searching § 87(2)(b) or seeing any other officer frisk and search her. § 87(2)(g)
- § 87(2)(b) alleged that one of the officers she had interacted with earlier in the day, PO Murphy and PO Jordan, searched her bag. PO Malone testified that PO Nelson asked to

see § 87(2)(b)'s bag, patted down the outside of the bag, looked inside the bag, which was already open, and then placed it on the trunk of their police car. PO Nelson testified that he did not recall interacting with § 87(2)(b) at all on March 7, 2017 and therefore was unable to confirm whether he searched § 87(2)(b)'s bag. PO Murphy and PO Jordan denied searching § 87(2)(b)'s bag and testified that her bag had already been placed on the hood of the police car when they arrived on the corner. § 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: Inside of § 87(2)(b) in Queens, Police Officer Michael Murphy threatened to arrest § 87(2)(b)

Allegation B – Abuse of Authority: Inside of § 87(2)(b) in Queens, Police Officer Eric Jordan threatened to arrest § 87(2)(b)

On March 7, 2017, § 87(2)(b) called the police because she believed she had been illegally evicted from her apartment (**Board Review 4**). At approximately 4:00 p.m., PO Murphy and PO Jordan responded to § 87(2)(b)'s building and § 87(2)(b) asked the officers to help her open her apartment door because he locks had been changes. While she was speaking to the officers, § 87(2)(b)'s neighbor came out of his apartment and told the officers that § 87(2)(b) had been evicted by the New York City Marshalls earlier that day. The officers told § 87(2)(b) “Don’t illegally enter or break down the door of your apartment or you’ll go to jail.” § 87(2)(b) told the officers that she still needed to get into her apartment to retrieve her belongings, but the officers ultimately convinced § 87(2)(b) to not go into her apartment at that time. The officers then left § 87(2)(b)'s building.

PO Murphy testified that § 87(2)(b) stated she was going to go to break into her apartment to retrieve her belongings (**Board Review 5**). While the officers were speaking to § 87(2)(b), § 87(2)(b)'s neighbor came downstairs and told the officers that § 87(2)(b) had been evicted by the New York City Marshalls earlier in the day. PO Murphy then explained to § 87(2)(b) that if she broke into her apartment, then she could be arrested for burglary because she had been evicted from her apartment and was no longer allowed to be inside. The officers then left § 87(2)(b)'s building to respond to another job.

§ 87(2)(g) PO Jordan stated that he told § 87(2)(b) that if she did not leave the premises, she could be arrested for criminal trespassing because she had been evicted from her apartment earlier that day (**Board Review 6**). He and PO Murphy also explained to § 87(2)(b) that if she attempted to break into her apartment without the landlord or court’s permission, she could be arrested for burglary.

New York State Penal Law 140.10 states that a person is guilty of criminal trespass in the third degree when (s)he knowingly enters or remains unlawfully in a building or upon a rental property which is fenced in or otherwise enclosed in a manner designed to exclude intruders (**Board Review 7**).

New York State Penal Law 140.20 states that a person is guilty of burglary in the third degree when he knowingly enters or remains unlawfully in a building with intent to commit a crime therein (**Board Review 8**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **exonerated**.

Allegation C – Abuse of Authority: On the corner of § 87(2)(b) in Queens, Police Officer Joshua Malone stopped § 87(2)(b)

Allegation D – Abuse of Authority: On the corner of § 87(2)(b) in Queens, Police Officer Brian Nelson stopped § 87(2)(b)

§ 87(2)(b) testified that after she spoke to PO Jordan and PO Murphy inside her building, she was walking to the mechanic's shop a few blocks from her building to tell her friend who worked there what had happened. On the day of the incident, § 87(2)(b) testified that she was wearing jeans and a mid-thy length black jacket and was carrying a tote bag. She did not recall what else she was wearing or the color of the bag she was carrying. While she was on the corner of § 87(2)(b), multiple police cars pulled up in front of § 87(2)(b) and multiple officers, she did not recall how many, approached her. The officers told § 87(2)(b) that they had received a call that she had a gun.

PO Malone stated that he received a radio run for a black female individual trespassing with a firearm at § 87(2)(b) (**Board Review 9**). The radio run described the female individual to be wearing dark blue jeans, golden boots, a black jacket, and carrying a white bag. While PO Malone and PO Nelson were canvassing for the black female individual, PO Malone saw § 87(2)(b) walking down § 87(2)(b) wearing bright gold rain boots and a black jacket. PO Malone recognized § 87(2)(b) because he had responded to an incident in which she was involved the previous week. The officers made the decision to stop § 87(2)(b) together, PO Nelson parked the police car ahead of § 87(2)(b) and the officers approached § 87(2)(b). PO Malone began to engage § 87(2)(b) in conversation. When asked why he approached § 87(2)(b) PO Malone stated that she matched the description provided in the radio run. Although PO Malone did not believe § 87(2)(b) was armed at that time, the officers still needed to conduct an investigation because § 87(2)(b) matched the specific description provided by an identified caller of an individual who was allegedly armed and had committed a crime.

PO Nelson did not recall this incident or stopping § 87(2)(b) on March 7, 2017 (**Board Review 10**). PO Nelson did not recognize § 87(2)(b) after being shown a picture of her and he did not recall the incident after being told a narrative of what had happened. PO Nelson did not recall anything about the incident after being shown the SPRINT Event Summary of the 911 call detailing the description provided of the alleged perpetrator of the robbery in progress with a

firearm at § 87(2)(b)'s residence (**Board Review 11** and **Board Review 12**). Therefore, PO Nelson was unable to confirm or deny if he stopped § 87(2)(b).

Based on People v. DeBour, 40 N.Y.2d 201 (1976), an officer is allowed to conduct a forcible stop of a person if the officer has reasonable suspicion of criminality (**Board Review 13**).

People v. Bennett, 27 N.Y.3d 483 (2007), states that an officer is allowed to conduct a stop and detain a person based on contents of a police dispatcher's radio broadcast providing a general description of a perpetrator which matched the description of the person, close proximity of the person to the site of the crime, and a short passage of time between the commission of the crime and the observation of the person (**Board Review 14**).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** and **Allegation D** be closed as **exonerated**.

Allegation E – Abuse of Authority: On the corner of § 87(2)(b) in Queens, Police Officer Brian Nelson frisked § 87(2)(b)

Allegation F – Abuse of Authority: On the corner of § 87(2)(b) in Queens, Police Officer Brian Nelson searched § 87(2)(b)

§ 87(2)(b) alleged that she was frisked and her pockets were searched by a white male officer immediately after being stopped on § 87(2)(b). No other individuals witnessed § 87(2)(b) being frisked and searched.

PO Malone testified that neither PO Nelson nor he frisked § 87(2)(b) after stopping her. He also stated that Sgt. Liff, PO Murphy, and PO Jordan did not arrive on scene until a few minutes after § 87(2)(b) was stopped by officers. None of the officers were able to identify the additional units that arrived on the scene and they stated that they did not take any police action during the incident. The SPRINT listed PO Murphy, PO Jordan, PO Malone, PO Nelson, and Sgt. Liff as the responding units to this incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** and **Allegation F** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: On the corner of § 87(2)(b) in Queens, Police Officer Brian Nelson searched § 87(2)(b)

§ 87(2)(b) alleged that a white male officer commanded § 87(2)(b) to give him her bag after she had been stopped. § 87(2)(b) gave the officer her bag and then began going through her bag. The officers then began patting her down and searching her pockets.

PO Malone testified that PO Nelson asked § 87(2)(b) to give him her bag so that he could look inside. § 87(2)(b) gave PO Nelson her bag and he began patting down the outside of the bag to determine whether or not there was a firearm inside § 87(2)(b)'s bag. PO Malone saw PO Nelson look inside the bag. PO Nelson later told PO Malone that he chose not to search the bag because there was food inside. He then placed § 87(2)(b)'s bag on the trunk of the police car. § 87(2)(b) then asked why PO Nelson wanted to see her bag and PO Malone explained that the officers had received a call stating that she was armed. § 87(2)(b) then became very upset and began yelling and cursing at the officers.

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Squad: **9**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date